

Court No. - 21

Case :- WRIT - C No. - 27265 of 2020

Petitioner :- Ranveer

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ram Jatan Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard Sri Ram Jatan Yadav, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent no.2.

The present petition has been preferred by the petitioner for the following reliefs:-

"(i) Issue a writ order or direction in the nature of certiorari quashing the impugned order dated 11.09.2020 passed by the respondent No.2 (Annexure No.7 to this writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondent No.2 to provide the disconnected electric certificate as connection No. 655/13997 to the petitioner and further be pleased to direct the respondent No.2 to provide the correct electric bill till 15.03.2020 to the petitioner."

Sri Baleshwar Chaturvedi, learned counsel for the contesting respondent has raised a preliminary objection regarding maintainability of the writ petition on the ground that against the impugned order/disputed bills the petitioner has got an efficacious alternative remedy under Clause 6.5 of Uttar Pradesh Electricity Supply Code, 2005 and if the petitioner is not satisfied by the order of the Executive Engineer, he can make a complaint to the Consumer Grievance Redressal Forum in accordance with Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005 read with Uttar Pradesh Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

Once efficacious alternative remedy is available to the petitioner then there is no reason or occasion for us to bypass the statutory forum.

The writ petition stands **disposed of** accordingly.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioners along-with a self attested identity

proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 18.1.2021

Ishan